

HOUSE No. 2488

The Commonwealth of Massachusetts

PRESENTED BY:

Hadley Luddy and Michelle L. Badger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to monitoring dry casks of spent nuclear fuel.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>1/16/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>1/16/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/20/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/20/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>4/24/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>10/7/2025</i>

HOUSE No. 2488

By Representatives Luddy of Orleans and Badger of Plymouth, a petition (accompanied by bill, House, No. 2488) of Hadley Luddy, Michelle L. Badger and others for legislation to monitor dry casks of spent nuclear fuel. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to monitoring dry casks of spent nuclear fuel.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 BILL WAS ORIGINALLY FILED LAST SESSION, SEE S.2685, SENATE BILL
2 FILED THIS SESSION SD356

3 SECTION 1. Chapter 111 of the General Laws is hereby amended by:-

4 (a) Amending the title of section 5K by adding “STORAGE OF SPENT NUCLEAR
5 FUEL:” after “NUCLEAR REACTOR; and

6 (b) Adding the following to section 5K:- (I) For the purpose of preventing, mitigating, or
7 alleviating impacts on the resources of the commonwealth and to the health of its citizens from
8 radiation emitted by spent nuclear fuel at facilities that at any time generated electricity for retail
9 customers in the commonwealth, (i) the owner and operator of each such facility in the
10 commonwealth that is not a stranded asset under Chapter 164 of the Acts of 1997 that stores
11 nuclear fuel in dry casks shall report to the department of public health radiation control division,
12 on a continuous real-time basis, the temperature of and the rate of helium and radiation release

13 from each such dry cask. and (ii) the department of public health shall, in consultation with the
14 office of the attorney general, promulgate rules and regulations to adopt and implement such
15 reporting.